

(YOUR PROGRAM)

COACHING AGREEMENT

This Client Agreement (the “**Agreement**”), dated as of [REDACTED] (“**Effective Date**”), is between [REDACTED] (the “**Company**”), [a X State Entity Type], and [REDACTED] (the “**Client**”) (collectively, the “**Parties**”).

The Parties are entering into this Agreement for the purpose (the “**Purpose**”) of contracting for online personal health and fitness services provided by the Company and affiliated Coaches (the “**Coach**”).

Therefore, the Parties agree as follows:

1. **Authorized Parties.** The Client acknowledges that they are contracting for the services of online personal health and fitness coaching provided by the Company (the “**Services**”). Any Coach shall be entitled to provide the services described in this Agreement, on behalf of the Company.
2. **Services Provided.** The Coach shall design a customized exercise and nutrition program for the Client that reflects the Client’s objectives, fitness level, and experience. The Coach will review the proposed program with the Client prior to the Client commencing the program. The Client’s commencement of the program constitutes the Client’s acceptance of the proposed program.

3. **Method of Payment.**

3.1 The Payment Terms shall be as follows [REDACTED]

3.2 The Company will bill the Client monthly in equal monthly installments of the total cost indicated above. The Company shall supply the Client a written or electronic invoice for all amounts due under this Agreement. Pricing for the services shall be stated on such invoice.

3.3 The Client shall make all payments required under this Agreement through [REDACTED].

3.4 If payment is not made or is not authorized by [REDACTED] all coaching services will be suspended until a new payment is made by Client.

4. **Refunds on Payment.** The Client understands and agrees that no refunds for any payments made to the Company will be provided for any reason, unless the Client receives the prior written consent of the Company.
5. **Degree of Care.** The Company shall provide the Services in accordance with industry standards.
6. **No Representations or Warranties of the Company and Affiliates.** Neither the Company nor the Coaches authorized to work on the Company’s behalf make any representation or warranty, expressed or implied.

7. **Representations and Warranties of The Client.** The Client represents and warrants to the Company that they are in adequate physical health to engage in the Services provided under this Agreement, and do not have any preexisting ailments or conditions that would prevent them from receiving the Services under this Agreement.

8. **Confidentiality.**

8.1 You acknowledge that you will have access to information that is treated as confidential and proprietary by the Company including without limitation the existence and terms of this Agreement, trade secrets, technology, and information pertaining to business operations and strategies, customers, customer lists, pricing, marketing, finances, sourcing, personnel, operations of the Company, its affiliates, their suppliers or customers, workout protocols, nutritional guidelines, exercise explanations, e-books, and other confidential information, in each case whether spoken, written, printed, electronic, or in any other form or medium (collectively, the "Confidential Information"). You agree to treat all Confidential Information as strictly confidential, not to disclose Confidential Information or permit it to be disclosed, in whole or part, to any third party without the prior written consent of the Company in each instance, and not to use any Confidential Information for any purpose except as required under this Agreement. You shall notify the Company immediately in the event you become aware of any loss or disclosure of any Confidential Information.

8.2 Confidential Information shall not include information that: (a) is or becomes generally available to the public other than through your breach of this Agreement; or (b) is communicated to you by a third party that had no confidentiality obligations with respect to such information.

8.3 Nothing in this Agreement shall be construed to prevent disclosure of Confidential Information as may be required by applicable law or regulation, or pursuant to the valid order of a court of competent jurisdiction or an authorized government agency, provided that the disclosure does not exceed the extent of disclosure required by such law, regulation, or order. You agree to provide written notice of any such order to an authorized officer of the Company within 1 business day of receiving such order, but in any event sufficiently in advance of making any disclosure to permit the Company to contest the order or seek confidentiality protections, as determined in the Company's sole discretion.

9. **Termination.**

9.1 The Parties shall have the right to terminate this Agreement upon written notice of termination to the other party. This writing must be via email or regular US mail. Text messaging shall not be considered written notice. If this Agreement is terminated by the Client, the Client shall provide a 30 day notice before the next scheduled payment date. If The Client is unable to provide written cancellation notice before 30 days of the next scheduled payment, the Client is responsible to pay a termination fee equal to the next scheduled payment (the "**Termination Fee**"). The Client shall not be entitled to a refund for cancellation. In the event of the Termination of this Agreement, the terms and conditions of this clause and section 4, Section 7, Section 8, Section 10, Section 11, Section 12, Section 13, Section 14, Section 15, Section 16, Section 17, Section 18, and Section 19 shall survive the expiration or termination of this Agreement.

9.2 On the expiration or termination of this Agreement, at the Company's written request, the Client shall promptly return, and shall require its Representatives to return to the Company all copies, whether in written, electronic, or other form or media, of the Company Confidential Information, or destroy all such copies and certify in writing to the Company that such Confidential Information has been destroyed. In

addition to all other remedies available at law, the Company may seek equitable relief, including injunctive relief, against the Client and its Representatives to prevent the breach or threatened breach of this Section and Section 7, to secure its enforcement.

10. **Assumptions of the Risks and Release.** By signing this Agreement, the Client recognizes that there are certain inherent risks associated with the above described activities and that the program may involve strenuous physical activity including, but not limited to muscle strength, endurance training, cardiovascular conditioning and training, and any other fitness activity. Client represents and warrant that they are in good physical condition and do not suffer from any known disability or condition which would prevent or limit the Client's participation in the Services. The Client understands that their enrollment and participation is purely voluntary and in no way mandated by the Coach or the Company. The Client assumes full responsibility for personal injury to the Client and Client's family members or those with him the Client shares the Coaching Program. Client further understands that the Client's responses to the pre-screening questionnaire in no way shift liability to the Coach or the Company and it is Client's sole responsibility to determine whether or not the Client is physically and mentally able to participate in the Services.
11. **Indemnification.** The Client shall defend, indemnify, and hold harmless the Company, its affiliates, the Coach, and their officers, directors, employees, agents, successors, and assigns from and against all losses, damages, liabilities, deficiencies, actions, judgments, interest, awards, penalties, fines, costs, or expenses of whatever kind, including reasonable attorneys' fees arising out of or resulting from: (a) bodily injury, sickness, death of any person, or damage to real or tangible property resulting from your acts or omissions; or (b) your breach of any representation, warranty, or obligation under this Agreement.
12. **Assignment.** A party's rights and obligations under this Agreement may not be assigned or otherwise transferred without the prior written consent of the other party. This Agreement shall be binding upon and inure to the benefit of each of the parties and their respective successors and permitted assigns. Any purported assignment by a party in violation of this Agreement shall be null and void from the initial date of purported assign.
13. **Nutritional Disclaimer.** By participating in the Services, the Client understands and agrees that the Coach is not a registered dietician. Any nutritional guidance or information given is not meant to be used as prescription for diets, or supplements to treat *any* medical or clinical condition, to treat any symptoms of a medical or clinical condition or to diagnose a medical or clinical condition. Any nutritional information given is merely information regarding nutrition for healthy individuals only. If you have a medical or clinical condition, please consult a registered dietician for more information regarding nutrition and your condition.
14. **Affiliate Disclaimer.** The Coach and the Company have affiliate relationships with certain companies which may be discussed throughout the term of this agreement, on social platforms owned by the Coach or the Company, and on the Coach's or Company's website. The Client's use of products or services from these affiliates or interactions with the affiliates, including payment and delivery of goods or services, and any other terms, conditions, warranties or representations associated with such dealings, are solely between the Client and such affiliates or individuals. The Client is solely responsible for making all investigation necessary or appropriate before proceeding with any offline or online transaction with any of these third parties. The Client agrees that neither the Company nor the Coach shall not be responsible or liable for any loss or damage of any sort incurred as the result of any transactions entered into with third party affiliates or other third parties. The Client shall be solely responsible for resolving disputes between the Client and an affiliate. The Client hereby releases the Coach, the Company, its officers, employees, agents and successors in rights from claims, demands and damages of every kind or nature, known or unknown, suspected and unsuspected, disclosed and undisclosed, arising out of or in any way related to transactions with third party affiliates or other third parties.

15. **Remedies.** In the event you breach or threaten to breach Section 8 of this Agreement, you hereby acknowledge and agree that money damages would not afford an adequate remedy and that the Company shall be entitled to seek a temporary or permanent injunction or other equitable relief restraining such breach or threatened breach from any court of competent jurisdiction without the necessity of showing any actual damages. Any equitable relief shall be in addition to, not in lieu of, legal remedies, monetary damages, or other available forms of relief.
16. **Use of Photos and Personal Information.** The Client acknowledges that photos and or videos of the Client may be used across various social media platforms, and websites by Coach for marketing purposes. The Client gives permission and consent to allow the Coach to use client such photos and videos as necessary on platforms including but not limited to Instagram, Instagram Story, Facebook, and their own personal website. Client may request that all photos be kept private and not used in any manner. If at any time the Client is uncomfortable with a photo that has been shared, they may request the Coach to take down certain photos or information. Company shall own all right, title, and interest in and to all photos and videos of Client that are taken using the Company or Coach's photo or video equipment, or that are used on Coach or Company's website or social media platforms.

17. **Arbitration.**

17.1 Any dispute, controversy, or claim arising out of or related to this Agreement or any breach or termination of this Agreement, any any alleged violation of any federal, state, or local statute, regulation, common law, or public policy, whether sounding in contract, tort, or statute, shall be submitted to and decided by binding arbitration. Arbitration shall be administered by the American Arbitration Association ("AAA") and held in Miami, Dade-County, Florida, before a single arbitrator, in accordance with the AAA's rules, regulations, and requirements. Any arbitral award determination shall be final and binding upon the Parties. Judgment on the arbitrator's award may be entered in any competent jurisdiction.

17.2 Arbitration shall proceed only on an individual basis. The Parties waive all rights to have their disputes heard or decided by a jury or in a court trial and the right to pursue any class or collective claims against each other in court, arbitration, or any other proceeding. Each party shall only submit their own individual claims against the other and will not seek to represent the interests of any other person. The arbitrator shall have no jurisdiction or authority to compel any class or collective claim, or to consolidate different arbitration proceedings with or join any other party to an arbitration between the Parties.

18. **Governing Law, Jurisdiction, and Venue.** This Agreement and all related documents including all schedules attached to this Agreement and all matters arising out of or relating to this Agreement and the Services provided, whether sounding in contract, tort, or statute, for all purposes shall be governed by and construed in accordance with the laws of the State of Florida (including its statutes of limitations), without giving effect to any conflict of laws principles that would cause the laws of any other jurisdiction to apply. An action seeking to enforce an injunctive relief in aid of arbitration or to enforce an arbitration award by either of the Parties under this Agreement, shall be brought only in any state or federal court located in the State of Florida, County of Dade. The Parties hereby irrevocably submit to the exclusive jurisdiction of these courts and waive the defense of inconvenient forum to the maintenance of the above specified actions and proceedings in such venue.

19. **Miscellaneous.**

19.1 **Severability.** Should any provision of this Agreement be held by a court of competent jurisdiction to be enforceable only if modified, or if any portion of this Agreement shall be held as unenforceable and thus stricken, that holding shall not affect the validity of the remainder of this Agreement, the balance of which shall continue to be binding on the parties with any modification to become a part of and treated as though originally set forth in this Agreement. The parties further agree that any such court is expressly authorized to modify any unenforceable provision of this Agreement instead of severing the unenforceable provision from this Agreement in its entirety, whether by rewriting the offending provision, deleting any or all of the offending provision, adding additional language to this Agreement, or by making any other modifications it deems warranted to carry out the intent and agreement of the parties as embodied in this Agreement to the maximum permitted by law.

19.2 **Notice.** All notices must be in writing and addressed to the Disclosing Party at its address set out in the preamble (or to such other address such party specifies in accordance with this Section). All notice must be personally delivered or sent prepaid by nationally recognized courier or certified or registered mail, return receipt requested, and are effective on actual receipt

19.3 **Counterparts.** This Agreement may be executed by facsimile and in counterparts, all of which shall be considered one and the same agreement and shall become effective when one or more counterparts have been signed by each of the parties and delivered to all parties in this Agreement.

19.4 **Entire Agreement.** This Agreement terminates and supersedes all prior and contemporaneous understandings, agreements, representations, and warranties, whether written or oral, regarding such subject matter. This Agreement may only be amended, modified, waived, or supplemented by an agreement in writing signed by both parties.

[Signature Page Follows]

[Your Entity]

BY:.....

(signature)

Name:

(printed name)

Title:

ACCEPTED AND AGREED:

[Client Name/Client's Entity]

BY:.....

(signature)

Name:

(printed name)

Title:

Date: